

26STCV08900 26STCV08900

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Case Number: 26STCV08900 Hearing Date: September 28, 2026 Dept: 510

No.

12 – Eugen Gabriel Parhoti, et al. v. Heather Village Association, et al.

Defendants

Heather Village Association and Icon Realty Services, Inc.'s Demurrer and
Motion to Strike Portions of Plaintiffs' First Amended Complaint

Demurrer

Defendants

Heather Village Association and Icon Realty Services, Inc. demur to Plaintiffs Eugen
Gabriel and Lavinia Parhoti's fourth cause of action for intentional infliction
of emotional distress in their first amended complaint.

Plaintiffs

allege sufficient facts for this cause of action. The claim's elements are "(1)
extreme and outrageous conduct by the defendant with the intention of causing,
or reckless disregard of the probability of causing, emotional distress; (2)
the plaintiff's suffering severe or extreme emotional distress; and (3) actual
and proximate causation of the emotional distress by the defendant's outrageous
conduct." (Hughes v. Pair (2009) 46 Cal.4th 1035, 1050.) "Whether
the defendant's conduct was outrageous and whether the plaintiff's emotional
distress was severe are generally questions of fact." (Murphy v.
Allstate Ins. Co. (1978) 83 Cal.App.3d 38, 51.)

Plaintiffs

allege that their kitchen and living room ceiling started leaking and flooding
their kitchen, living room, and dining room. (FAC, ¶ 10.) Despite asking their

HOA, Defendant Heather Village Association, for immediate assistance with the emergency, Defendant “did not provide any assistance or direction whatsoever,” instead directing them to work it out with their upstairs neighbor. (Id., ¶ 13.) The next day, Plaintiff Lavinia Parhoti suffered a panic attack due to the circumstances. (Id., ¶ 14.) Three days after the leak started, Plaintiffs’ upstairs neighbors had a plumbing service check out the leak; they discovered that “the water had absorbed into the walls causing mold to develop in the ceiling in the kitchen and living room common area walls causing Category 3 ‘black water’ damage that is grossly contaminated containing toxins and pathogens.” (Id., ¶¶ 18-20.) Plaintiffs were forced to relocate and live in a hotel for 6 months due to the damage. (Id., ¶ 21.) Plaintiffs allege that Defendants caused “severe and extreme emotional distress of such a substantial quality that no reasonable man in civilized society should be expected to endure including stress, anxiety, panic, worry, horror, uncertainty, and suffering.” (Id., ¶ 115.) While it is a close call, the Court cannot conclude that, as a matter of law, Defendants’ conduct was not outrageous enough to support a cause of action for intentional infliction of emotional distress. These allegations are sufficient at the pleading stage.

Motion
to Strike

Defendants

Heather Village Association and Icon Realty Services, Inc. move to strike 15 references to punitive damages from the FAC.

Courts

may strike allegations related to punitive damages where the facts alleged “do not rise to the level of malice, oppression or fraud necessary” to recover punitive damages under Civil Code section 3294. (Turman v. Turning Point of Central California, Inc. (2010) 191 Cal.App.4th 53, 64.) Conclusory allegations are not enough. (Smith v. Superior Court (1992) 10 Cal.App.4th 1033, 1042.) The complaint must make “factual assertions supporting a conclusion [defendants] acted with oppression, fraud or malice.” (Ibid.)

Here,

the Court finds that Plaintiffs allege sufficient facts for punitive damages.

The FAC alleges that Defendants “had knowledge of the leaks and water damage to the subject unit and were aware that the water damage and continue to mold

[sic] in the unit but they consciously disregarded that likelihood including the likelihood that it would harm Plaintiffs.” (FAC, ¶ 62.) They allege that “the emergency request was intentionally ignored by Defendants and is willful, wanton and malicious behavior by its officers, directors and managing agent’s [sic] of Defendants.” (Id., ¶ 33.)

The

Court cannot conclude that, as a matter of law, these allegations do not suffice to constitute malice as “despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others” (Civ. Code, § 3294, subd. (c)(1)) or oppression as “despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights” (id., subd. (c)(2)).

The

Court declines to strike references to punitive damages.

Disposition

Defendants

Heather Village Association and Icon Realty Services, Inc.’s demurrer to Plaintiffs’ first amended complaint is overruled. Defendants must answer the complaint within 21 days.

Defendants Heather Village Association

and Icon Realty Services, Inc.’s motion to strike portions of Plaintiffs’ first amended complaint is denied.